M/S. Aruppukottai Shri Ramalinga ... vs Tamil Nadu Electricity Board & Anr. & Ors on 21 March, 2012

COURT - I

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)
Appeal No. 13 of 2012 &
I.A. Nos. 21 & 22 of 2012

Dated : 21st March, 2012

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

In the matter of:

M/s. Aruppukottai Shri Ramalinga
Spinners Pvt. Ltd. ....Appellant (s)
Versus
Tamil Nadu Electricity Board & Anr. ... Respondent (s)

Counsel for the Appellant (s) : Mr. K.V. Vijaya Kumar

Counsel for the Respondent(s): Mr. Vallinayagam

ORDER

The prayer has been made in this Appeal to set aside the Order dated 07.09.2010. Now it is pointed out by the learned counsel for the Respondent that the said Order has already been set aside by this Tribunal in other Appeals and the matter was remanded for giving reasons for deciding about the date on which the order comes into force. So in view of the above fact, which is not disputed, this Appeal becomes infructuous.

Therefore, the Appellant seeks permission to withdraw the Appeal. Accordingly, the Appeal is dismissed. In view of the fresh order being passed, it is open to the Appellant to file fresh Appeal as against that Order which is subsequently passed.

(Rakesh Nath) (Justice M. Karpaga Vinayagam)
Technical Member Chairperson

TS